

DELIVEROO CORE

Part 1 – PARTY DETAILS

This Service Pack is made **BETWEEN**

Roofoods Ltd (" Deliveroo ")	Registered in England and Wales with number: 08167130
Whose registered office is at The River Building, Level 1 Cannon Bridge House, 1 Cousin Lane, London EC4R 3TE	

AND

Sessions Accelerator Limited (" Partner ")	Registered in England with number: 13248903
Whose registered office is at 8th Floor 52 Grosvenor Gardens, London, England, SW1W 0AU	
With VAT number: _____	

(each a "**party**" and together the "**parties**").

Part 2 – COMMERCIAL TERMS

COMMERCIAL TERMS	
In this Service Pack:	
COMMENCEMENT DATE	1 January 2026
TERM	24 months
TERRITORY	United Kingdom
PERMITTED ORDER TYPES	Delivery Orders and Pick-up Orders
PARTNER SITES	The Partner is to provide an updated list of Site(s) in accordance with the Weekly Reporting obligations (the " Site(s) ")
NOMINATED REPRESENTATIVE / RELATIONSHIP MANAGER	Deliveroo Jacob Fries <jacob.fries@deliveroo.co.uk>
	Partner Dan Warne <dan@sessions.co.uk>
JOINING FEE	The Joining Fee shall be £100 for each Site, the payment for which Deliveroo may set off against the Partner Payment.
EQUIPMENT	Deliveroo shall supply tablets and thermal printers (the " Equipment ") during the Term in respect of each Site. However, this obligation shall only be effective until the tabletless solution becomes available to the Partner.
CORE SERVICES FEE	The Core Services Fee shall be calculated as follows (plus VAT): (a) for the period commencing on the Commencement Date and ending on and including the tenth Business Day following the Commencement Date (the "Transition Period"), the Core Services Fee shall continue to be calculated in accordance with the last agreement in force between the parties in relation to the Services prior to the Commencement Date; (b) for each subsequent Quarter during the Initial Term: the applicable Adjusted Core Services Rate (expressed as a percentage) of the gross merchandise value of the Menu Items (inclusive of VAT) ("GMV") ordered by the Customer per calendar week as Delivery Orders; and (c) following the expiry of the Initial Term: 30% of the GMV ordered by the Customer per calendar week as Delivery Orders. The "Adjusted Core Services Rate" for any Quarter means: <i>the Headline Commission Rate plus all applicable Commission Adjustments for that Quarter</i> calculated in accordance with the remainder of this section of the Core Service Pack. For the avoidance of doubt where a Commission Adjustment in the tables below is expressed as a negative number, the Headline Commission Rate shall be

reduced by that number of % points and where it is expressed as a positive number, the Headline Commission Rate shall be increased by that number of % points.

“**Commission Adjustment**” means the applicable reduction or increase (expressed in % points) following the application of each PFP Incentive set out below for the relevant Quarter.

The “**Headline Commission Rate**” for any Delivery Order in a Quarter is:

Either:

(a) if the Price Competitiveness Condition has been met for the preceding Quarter: the % rate determined according to the following table:

GBP DELIVERY ORDERS

£ Value of Delivery Order placed by a Customer in the United Kingdom	Headline Commission Rate
£0 - 11.99	32.59%
£12 - 13.99	31.59%
£14 - 15.99	30.00%
£16 - 17.99	28.78%
£18 - 19.99	27.82%
£20 - 21.99	27.04%
£22 - 23.99	26.40%
£24 - 25.99	25.86%
>£26+	25.62%

or

(b) if the Price Competitiveness Condition has not been met for the preceding Quarter: 30%

The “**Price Competitiveness Condition**” means the price for each Menu Item provided for display on the Platform by the Partner in the relevant Quarter having not exceeded the price for the same menu items offered by the Partner to customers purchasing from Partner at its business premises or its e-commerce store(s) at any point in that Quarter.

Partner shall provide written supporting materials to Deliveroo to demonstrate that the Price Competitiveness Condition has been met not less than two Business Days before the end of the relevant Quarter. Deliveroo may independently verify such supporting materials and shall determine whether the Price Competitiveness Condition has been met for each Quarter in its sole discretion.

Calculation of the Adjusted Core Services Rate

Promptly after the end of each quarter, with the first quarter commencing on the Commencement Date and ending on 31st March 2026 (the first quarter and each successive three-month period being, a “**Quarter**” save that the last Quarter may be less than three months and will instead end on the date of termination of the Agreement), Deliveroo shall: (i) calculate each of the Adjustment Metrics (as defined below) for the immediately preceding Quarter; (ii) determine the Adjusted Core Services Rate for the current Quarter by applying those Adjustment Metrics for the immediately preceding Quarter to the Headline Commission Rate; and (iii) send or otherwise make available to the Partner a statement (the “**Commission Adjustment Statement**”) summarising the calculation of each Adjustment Metric for the preceding Quarter and the Adjusted Core Services Rate for the current Quarter. The Adjusted Core Services Rate for a Quarter (the “**Current Quarter**”) shall be effective from and including the tenth Business Day following the end of the immediately preceding Quarter to and including the ninth Business Day following the end of the Current Quarter.

The Adjustment Metrics and the Adjusted Core Services Rate shall be calculated individually for each Site. Where the parties agree that a new Partner location shall be added as a Site after the Commencement Date the Core Services Fee then any such Site(s) shall be subject to the prevailing Core Services Fee. Where the prevailing Core Services Fee the first Quarter in which such Site(s) are live on the Platform shall be the Adjusted Core Services Rate calculated on the basis of the average Adjustment Metrics for all Sites in the preceding Quarter

Except in the case of manifest error Deliveroo’s determination of any Adjustment Metric and/or the Adjusted Core Services Rate shall be final and binding.

Where a Site is unable to operate for reasons beyond the reasonable control of the Partner for any day during a Quarter then the Partner may request that any such Site is excluded from the calculation each Adjustment Metric for that day (a “**Site Exclusion Request**”). A Site Exclusion Request shall be in writing, shall include reasonable supporting evidence as requested by Deliveroo and shall be delivered to Deliveroo no later than 10 days before the end of the Quarter to which it relates. Deliveroo shall consider any Site Exclusion Request in good faith and may grant or refuse any Site Exclusion Request in its discretion. By way of example only reasons which will not be considered to be beyond the reasonable control of the Partner include but are not limited to the following:

- transport strikes
- Partner staff shortages or strikes
- materials shortages
- blocked drains
- Equipment failure (for instance extractions fans, fryers)

	- Site damage or maintenance - water leaks - utility failures within the Partner’s control (eg caused by onsite maintenance) or where the Partner has failed to implement adequate back-up plans - Tablet failure or error (except where caused by Deliveroo) Where Deliveroo makes a Platform Modification (as defined below) and such Platform Modification includes a change to the methodology by which an Adjustment Metric is calculated or measured, then Deliveroo may by written notice to the Partner amend the relevant Adjustment Metric and/or re-base and amend the thresholds and Commission Adjustments in respect of that Adjustment Metric provided always that any such change (i) does not have a material adverse effect on the Partner and (ii) is implemented on a Platform-wide basis for partners operating in the same segment as the Partner .
PICK-UP SERVICES FEE	The Pick-up Services Fee shall be calculated as follows (plus VAT): 10% of the GMV ordered by the Customer per calendar week as Pick-up Orders.

PfP INCENTIVES		
ADJUSTMENT METRICS:		
RIDER WAIT TIME PAST TARGET	% of Delivery Orders received through the Platform during the Quarter where the Rider Held Time is longer than 5 minutes	Commission Adjustment (% points)
	<3%	-2.00%
	3%-3.99%	-1.80%
	4%-4.99%	-1.60%
	5%-5.99%	-1.40%
	6%-6.99%	-1.20%
	7%-7.99%	-1.00%
	8%-8.99%	-0.80%
	9%-9.99%	-0.60%
	10%-10.99%	-0.40%
	11%-11.99%	-0.20%
	12%-12.99%	0.00%
	13%-13.99%	0.20%
	14%-14.99%	0.40%
	15%-15.99%	0.60%
	>16%	0.80%
"Rider Held Time" has the meaning given to it at clause 9.1.3 below.		
MISSING ITEMS	% of Orders received by Customers during the Quarter with at least one type of missing item claim (including missing Menu Items, incomplete or incorrect Menu Items, Menu Items cooked incorrectly, and/or dietary requirements for a Menu Item not met)	Commission Adjustment (% points)
	<1%	-2.40%
	1%-1.24%	-2.20%
	1.25%-1.49%	-2.00%
	1.5%-1.74%	-1.80%
	1.75%-1.99%	-1.60%
	2%-2.24%	-1.40%
	2.25%-2.49%	-1.20%
	2.5%-2.74%	-1.00%
	2.75%-2.99%	-0.80%
	3%-3.24%	-0.60%
	3.25%-3.49%	-0.40%
	3.5%-3.74%	-0.20%
	3.75%-3.99%	0.00%
	4%-4.24%	0.20%
	4.25%-4.49%	0.40%
	4.5%-4.74%	0.60%
	4.75%-4.99%	0.80%
	5%-5.24%	1.00%

	5.25%-5.49% 5.5%-5.74% >5.75%	1.20% 1.40% 1.60%																								
OPEN HOURS AT PEAK	<table><tr><th>Actual Site Open Hours at Peak</th><th>Commission Adjustment (% points)</th></tr><tr><td>>99%</td><td>-1.20%</td></tr><tr><td>>98%</td><td>-1.00%</td></tr><tr><td>>96%</td><td>-0.80%</td></tr><tr><td>>94%</td><td>-0.60%</td></tr><tr><td>>92%</td><td>-0.40%</td></tr><tr><td>>90%</td><td>-0.20%</td></tr><tr><td>>88%</td><td>0.00%</td></tr><tr><td>>86%</td><td>0.00%</td></tr><tr><td>>84%</td><td>0.00%</td></tr><tr><td>>82%</td><td>0.00%</td></tr><tr><td>>80%</td><td>0.00%</td></tr></table> “Actual Site Open Hours at Peak” means the total number of hours each Site was open and available on the Platform during Peak Hours on each day of the Quarter. “Max Peak Hours” means the total number of hours during Peak Hours in the relevant Quarter. “Peak Hours” means the period starting at 17:00 and ending at 20:59		Actual Site Open Hours at Peak	Commission Adjustment (% points)	>99%	-1.20%	>98%	-1.00%	>96%	-0.80%	>94%	-0.60%	>92%	-0.40%	>90%	-0.20%	>88%	0.00%	>86%	0.00%	>84%	0.00%	>82%	0.00%	>80%	0.00%
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>86%	0.00%																									
>84%	0.00%																									
>82%	0.00%																									
>80%	0.00%																									
Marketer Ads Condition	The Partner will benefit from a 0.5% reduction in the Core Services Fee for so long as the Partner invests a minimum of 1% of the preceding six (6) months Total GMV (as defined below) into Deliveroo’s Marketer Ads tool in the subsequent relevant six (6) months during the Initial Term (“the Marketer Ads Condition”). For the avoidance of doubt, the six (6) months periods shall run 1st January to and including 30th June and 1st July to and including 31st December. 1) If the Partner fails to satisfy the Marketer Ads Condition in any single six (6) month periods, then Deliveroo may immediately: a) invoice the Partner for the shortfall in the Partner's Marketer Ads spend for the previous six (6) months and deduct the same from the Partner Payment; and b) henceforth remove the associated 0.5% reduction in the Core Services Fee for the remainder of the Initial Term.																									

SPECIAL TERMS	
In this Service Pack:	
EXCLUSIVITY Paragraph 4	Paragraph 4: Paragraph 4 of this Service Pack shall not apply to the Core Services and/or Pick-up Services
PAYMENT Paragraph 11	The following wording is added to the end of paragraph 11.8 of this Service Pack: “The Partner hereby agrees to make weekly payments (for Services Fees) to Deliveroo.”
BREAK CLAUSE Paragraph 13	The following wording is added to the end of paragraph 13.1 of this Service Pack: “Either party shall be entitled to terminate the Agreement following the Initial Term (“Break Date”) by providing at least 30 days’ prior written notice, such notice not to expire before the Break Date.”
Host Site Termination	Deliveroo shall be permitted to immediately offboard from the Platform any Host Site that has not processed any orders in the preceding month (provided that such right shall not apply in respect of Host Sites where the Partner has notified Deliveroo in writing of a particular site Host Site being closed for refurbishment or planned closure or other exceptional circumstances which reasonably prevent the Host Site from operating. The duration of any such closure shall be reasonably agreed between the parties, taking into account the nature of the circumstances and the impact on the Host Site’s ability to trade.. Deliveroo shall be permitted to immediately offboard from the Platform any Host Site that has greater than 13% of Delivery Orders received through the Platform during the previous 3 months where the Rider Held Time is longer than 5 minutes provided that Deliveroo, in its absolute discretion, shall take into account any exceptional circumstances notified

	by the Partner in writing which reasonably impact performance at the affected Host Site (including but not limited to staff illness, on-site operational issues, material equipment or technology failures, or other issues beyond the reasonable control of the Partner). Deliveroo shall be permitted to immediately offboard from the Platform any Host Site that has greater than 4% of Orders received by Customers during the previous 3 month with at least one type of missing item claim (including missing Menu Items, incomplete or incorrect Menu Items, Menu Items cooked incorrectly, and/or dietary requirements for a Menu Item not met) provided that Deliveroo, in its absolute discretion, shall take into account any exceptional circumstances notified by the Partner in writing which reasonably impact performance at the affected Host Site (including but not limited to staff illness, on-site operational issues, material equipment or technology failures, or other issues beyond the reasonable control of the Partner)..
Deliveroo Marketing Obligations	Deliveroo will provide SoBe Physical Franchise Sites only with £100 worth of Deliveroo funded vouchers when they launch a new SoBe menu on Deliveroo. This will be capped at 50 SoBe menus. Deliveroo will also set up 1 banner for the new SoBe Burger menu within the first three months of the franchise site launch (subject to Sessions having an active offer that we can call out and subject to availability).
Confidentiality	If the Partner commits a breach of paragraph 14.4 of the Terms as determined by Deliveroo in its absolute discretion, then Deliveroo may immediately increase the Core Services Fee to 30% of the GMV ordered by the Customer per calendar week as Delivery Orders.
Cohort Reports	Deliveroo shall provide to the Partner bi-annual cohort reporting (“Cohort Reports”) for the duration of the Term. Each Cohort Report shall include, at a minimum: (a) the number of new Customers acquired during the reporting period, segmented by Partner Brand and in aggregate across all Partner activity on the Platform; (b) month-by-month retention and repeat order behaviour of such Customers; and (c) the GMV generated by each Customer cohort Deliveroo shall provide the first Cohort Report no later than 28 February 2026, with subsequent Cohort Reports delivered every six (6) months thereafter. Deliveroo shall use reasonable endeavours to ensure that all data included in the Cohort Reports is accurate and presented in a clear and comprehensible format. All data included within each Cohort Report shall be entirely anonymised and shall not include any personal data whatsoever.

Signature			
In signing this Service Pack, each party acknowledges that it has read and agrees to be bound by it.			
For and on behalf of Deliveroo		For and on behalf of the Partner	
(signature) <i>Jessica Markowski</i>		(signature) <i>Daniel Warne</i>	
Name	Jessica Markowski	Name	Daniel Warne
Position	Director London	Position	CEO
Date	18/12/2025 14:16 GMT	Date	18/12/2025 13:16 GMT

1. OVERVIEW

- 1.1 This Service Pack sets out certain Services to be performed by Deliveroo.
- 1.2 This Service Pack is governed by and entered into pursuant to Deliveroo's Partner Terms and Conditions, a copy of which has been provided to the Partner (the "**Terms**"). The agreement between the parties comprises this Service Pack and the Terms (the "**Agreement**").
- 1.3 In the event of, and only to the extent of, any inconsistency between this Service Pack and the Terms, the provisions of the Terms shall prevail (except to the extent expressly set out otherwise in this Service Pack).

2. SERVICE DESCRIPTION & PLATFORM MODIFICATIONS

- 2.1 Deliveroo shall provide to the Partner the following services in relation to each of the Sites set out at the start of this Service Pack:
- 2.1.1 launch and display of the Partner and Menu Items on the Platform;
- 2.1.2 facilitation of a real-time ordering process which will enable Customers to place Orders for Menu Items via the Platform;
- 2.1.3 procurement of the Delivery Services (where applicable); and
- 2.1.4 the Customer Support Services,

(in respect of the Delivery Orders, the "**Core Services**" and in respect of Pick-up Orders (in which case the Delivery Services are excluded), the "**Pick-up Services**", together the "**Services**").

- 2.2 Notwithstanding anything to the contrary in this Agreement, the Partner acknowledges and agrees that Deliveroo may modify, supplement, enhance, or otherwise change (including through routine upgrades and bug fixes) the Services, any Platform and/or any Software (in whole or part) including the technical, functional, administrative and operative methods of supply of the same (a "**Platform Modification**") and that such amendment shall not require the consent or approval of, or prior notice to, the Partner. Notwithstanding the foregoing, Deliveroo shall where practicable and permissible seek to give reasonable notice to the Partner of any Platform Modification.

3. APPOINTMENT AS AGENT

- 3.1 The Partner appoints Deliveroo as its agent to solicit Orders in the Territory on the terms of the Agreement and Deliveroo accepts the appointment on those terms. Deliveroo is authorised by the Partner to solicit, promote and conclude contracts for Orders in the name of and on behalf of the Partner.
- 3.2 The Partner appoints Deliveroo as its agent to collect Customer payments owed to the Partner. Deliveroo shall be authorised to take such steps as it considers necessary to obtain such funds and shall hold such funds for and on behalf of the Partner. The Partner acknowledges and represents that where a Customer pays any funds due to the Partner to Deliveroo, Deliveroo shall receive such payment on the Partner's behalf and that receipt shall constitute settlement of the relevant Customer's debt to the Partner.
- 3.3 The Partner acknowledges and agrees that all Orders placed by Customers via the Platform shall:
- 3.3.1 be paid for by Customers via the Platform and the Partner shall not permit Customers to pay for Pick-up Orders at the time of pick-up; and
- 3.3.2 be entered into between the Partner and the Customer, and the Partner shall be solely responsible for all aspects of such Orders that are outside the scope of the Services (including but not limited to the preparation and/or packaging of the Menu Items).

4. EXCLUSIVITY

- 4.1 For the purposes of this paragraph 4, "**Restricted Person**" means any person (including an Affiliate of the Partner) who:

- 4.1.1 performs, provides or arranges any of the following services that are the same as or similar to services as the Services or any other equivalent services provided by Deliveroo or any of its Affiliates, whether under this Agreement or any other agreement between such parties, to the Partner:

- (a) online food or beverage marketplaces; and/or
- (b) demand delivery and/or collection services; and/or
- (c) collection or delivery-only kitchens (including mobile kitchens).

- 4.2 The Partner agrees that, during the Term, it shall not (and shall procure that none of its Affiliates shall):

- 4.2.1 enter into any agreement or arrangement, approach for talks or negotiations, or otherwise have any dealings with any Restricted Person; or

- 4.2.2 acquire or maintain any financial interest or involvement (whether direct or indirect) in or with any Restricted Person that operates within the Territory.

- 4.3 Deliveroo may in addition to other remedies available to it under the Agreement, take any of the following actions as a result of any breach of paragraph 4.2 (as determined by Deliveroo in its sole discretion):

- 4.3.1 increase the Core Services Fee (and/or Pick-up Services Fee, if applicable) to the amounts specified in the 'Breach of Exclusivity' section of the Cover Sheet to this Service Pack (or if no such rate is specified then Deliveroo's then-current standard non-exclusive core services fee rate and/or pick-up services fee rate, as the case may be) from the date of the relevant breach;

- 4.3.2 invoice the Partner an amount equivalent to the difference between the applicable Core Services Fee (and/or Pick-up Services Fee if applicable) before the date of the relevant breach and the core services fee and/or pick up services fee that would have been payable by the Partner if it had entered into this Agreement on a non-exclusive basis (which shall be the rate set out on the Cover Sheet to this Service Pack (or if no such rate is specified Deliveroo's then-current standard non-exclusive core services fee rate and/or pick up services fee rate, as the case may be)) and the Partner shall pay such invoice in accordance with the payment terms at paragraph 11;

- 4.3.3 remove the Partner and its menus from the Platform;

- 4.3.4 cease all marketing activities on behalf of the Partner;

- 4.3.5 reduce the Partner's delivery radius on the Platform;

- 4.3.6 remove the Partner's access to Deliveroo Customer insights;

- 4.3.7 restrict the Partner from procuring any of the Services;

- 4.3.8 suspend the Services in accordance with paragraph 13.3 of this Service Pack; and/or

- 4.3.9 terminate the Agreement and/or any Other Service Pack (if applicable) by giving 30 days' written notice to the Partner.

5. EQUIPMENT, SOFTWARE & MIDDLEWARE

- 5.1 The Partner shall purchase all Equipment required for the purpose of using the Software directly from Deliveroo unless this Agreement provides that the Partner shall use its own Equipment.

- 5.2 Where the Partner purchases the Equipment from Deliveroo, Deliveroo shall supply the Equipment, install the Software on the Equipment and launch the Partner on the Platform.

- 5.3 The Partner shall comply with the terms of any Deliveroo policy in relation to the Equipment supplied by Deliveroo.

- 5.4 Risk in the Equipment supplied by Deliveroo shall pass from Deliveroo to the Partner upon installation of the Equipment. Title to the Equipment shall pass to the Partner once Deliveroo has received payment in full of the Joining Fee.
- 5.5 The Partner agrees to take care of and keep secure all Equipment supplied by Deliveroo. Deliveroo agrees to use its reasonable endeavours to inspect, repair or replace Equipment notified to it as being faulty or damaged. The Partner shall promptly inform Deliveroo of any faults with, or damage to, the Equipment and shall procure for Deliveroo adequate and timely access to the Site(s) to inspect, repair and replace such Equipment. Deliveroo may charge a reasonable fee to the Partner for inspecting, repairing and/or replacing any Equipment supplied by Deliveroo.
- 5.6 Where the Partner uses its own Equipment, Deliveroo shall launch the Partner on the Platform and make the Software available to the Partner, but the Partner shall be responsible for installing and integrating the Software on the Equipment (and for all associated costs). Except where any defect or damage is proven to have been caused directly by Deliveroo and/or the Software, Deliveroo shall have no responsibility for, or liability in relation to, any Equipment and the Partner shall be responsible for servicing and maintaining the Equipment (and for all associated costs).
- 5.7 The Joining Fee covers the launch of the Partner on the Platform, the supply and installation of the Equipment and the Software (if applicable) and the licence to use the Software on the Equipment. Deliveroo may set off the payment of the Joining Fee against the Partner Payment.
- 5.8 The Software (including all Intellectual Property Rights therein) shall remain the property of and vested in Deliveroo or its licensors. The Partner has and shall acquire no rights in or to the Software other than the limited right to use it in accordance with the licence set out in this paragraph 5.8. In consideration of receipt of the Joining Fee, Deliveroo grants to the Partner a non-exclusive, non-transferable, non-sublicensable, revocable royalty-free licence to use the Software during the Term at the Site(s) solely for the purpose of performing its obligations under this Agreement, and provided that the Partner complies with the following conditions of use in relation to the Software:
- 5.8.1 the Partner shall not (and shall not permit any third party to) copy, adapt, reverse engineer, decompile, modify or make error corrections to the Software other than with Deliveroo's express prior written consent (except and only to the extent Applicable Law specifically prohibits any such restrictions);
- 5.8.2 the Partner shall not (and shall not permit any third party to) breach, disable, tamper with, or develop or use any workaround for any security measure contained within the Software or otherwise do anything that disrupts the operation of the Software or the business of Deliveroo or any other person;
- 5.8.3 the Partner shall be solely responsible for maintaining the security and confidentiality of the Partner's access credentials and shall be responsible for all acts and omissions of any person given or using the Partner's access credentials;
- 5.8.4 the Partner shall promptly implement any patches, updates, upgrades and/or new versions of the Software that Deliveroo may release from time to time; and
- 5.8.5 the Partner shall comply with the terms of any Deliveroo Policy relating to the Software.
- 5.9 The Partner acknowledges that Deliveroo may (at its sole discretion) release patches, updates, upgrades and/or new versions of the Software from time to time. Where the Partner uses its own Equipment, the Partner shall be solely responsible for ensuring that the Equipment meets the minimum specification required to operate the most up-to-date version of the Software from time to time.
- 5.10 The Partner must obtain Deliveroo's prior written consent before using the services of any third party to integrate or maintain integration between (i) the Platform and/or the Software and/or any Deliveroo owned API made available to the Partner from time-to-time (the "**Deliveroo Technology**") and (ii) the any Technology System or any middleware, software, services or data of a third party, ("**Integration Services**" and the provider of such services being an "**Integration Services Provider**").
- 5.11 Deliveroo may withhold its consent to any Integration Services Provider(s) at its sole discretion. Where Deliveroo consents to any Integration Services Provider, Deliveroo may at its discretion provide reasonable co-operation to the Partner and/or the Integration Services Provider in connection with the Integration Services. Notwithstanding any such consent or co-operation, Partner is solely responsible for the Technology System and/or Integration Services including: (i) its or their development, content, operation, maintenance, support, security and use; (ii) the integration and compatibility of the Technology System and/or Integration Services with current and future versions of the Deliveroo Technology; (iii) all costs and claims relating to the use of the Technology System and/or Integration Services, and (iv) the proper operation of the Integration Services and/or the Technology System and to the maximum extent permissible by law Deliveroo accepts no liability for any loss or damage which may result from the same, including in connection with any modifications, errors or inaccuracies caused or made by the Integration Services to any data or instructions communicated to the Partner via the Deliveroo Technology. Deliveroo may at any point deny or suspend access to the Integration Services where it considers they have become insufficiently stable or secure or is otherwise unfit for purpose.
- ## 6. WHAT WE WILL DO
- 6.1 In addition to Deliveroo's obligations set out at clause 3 of the Terms, Deliveroo shall use reasonable endeavours to:
- 6.1.1 subject to the payment by the Partner of the Joining Fee:
- (a) provide the Partner with the Equipment and install the Software on the Equipment where this is agreed in the Cover Sheet, or, if the Partner is to use its own Equipment, make the Software available to the Partner; and
- (b) onboard the Partner onto the Platform. The Partner acknowledges and agrees that Deliveroo shall have the right to subcontract any part of the onboarding process without the Partner's consent;
- 6.1.2 display the Partner and its Menu Items on the Platform as available for Orders;
- 6.1.3 facilitate and implement a real-time ordering process which will enable Customers to place Orders on the Platform;
- 6.1.4 provide the Customer Support Services through a professionally manned telephone call and online support centre which shall be operative during the Opening Hours. The Customer Support Services shall be provided in an orderly and efficient manner at no further cost to the Partner;
- 6.1.5 procure the Delivery Services for the Customer in relation to each Delivery Order; and
- 6.1.6 procure that Riders perform the Delivery Services in a professional manner and with reasonable care and skill.

7. WHAT YOU WILL DO

7.1 In addition to the Partner's obligations set out in clause 4 of the Terms, the Partner shall:

- 7.1.1 procure and maintain in force such rights, permits, certificates, registrations, licences and approvals and comply with all Applicable Law, regulations and industry best practices as are applicable to the Partner in carrying out its obligations in connection with the Agreement;
- 7.1.2 pay to Deliveroo: (i) the Joining Fee; and (ii) the Services Fees;
- 7.1.3 provide to Deliveroo all information, materials and assistance as is reasonably required by Deliveroo in order for Deliveroo to onboard the Partner to the Platform, including in relation to Menu Items and Opening Hours;
- 7.1.4 jointly with Deliveroo determine the Menu Items to be displayed on the Platform;
- 7.1.5 provide Deliveroo with accurate descriptions of and information in respect of Menu Items (including any relevant allergen nutritional information (where applicable), and any other pre-contractual or other information relating to the Menu Items as is required to be provided to consumers under Applicable Laws, together with applicable VAT amounts). The Partner is solely responsible for the description of such Menu Items and agrees that:
 - (a) Deliveroo may edit descriptions of Menu Items if necessary for display of such description on the Platform;
 - (b) where the Partner enters or edits any part of its menu, it shall do so in accordance with this Agreement and all applicable terms, conditions, policies and/or guidelines specified by Deliveroo;
 - (c) the prices for the Menu Items it provides for display on the Platform shall not be more than the prices for menu items offered by the Partner to customers purchasing from Partner at its business premises or its e-commerce store(s). The Partner agrees that if a Customer provides Deliveroo with evidence that, without reference to promotional offers, the price offered at Partner's business premises or e-commerce store is lower than the price of the Menu Item on the Platform, Deliveroo shall refund the difference to the Customer and deduct an amount equal to such refund from the Partner Payment;
 - (d) the Partner shall provide all information required for Menu Items by Deliveroo acting reasonably and by Applicable Law, including images, and regulatory information; and
 - (e) Deliveroo may, acting in its sole discretion, edit or remove any menu (in whole or in part) displayed on the Platform where, in Deliveroo's reasonable opinion, it does not comply with this Agreement or any applicable term, condition, policy or guideline;
- 7.1.6 give Deliveroo not less than 3 days' written notice of any change, withdrawal and/or the discontinuance of any Menu Items and any change to the Opening Hours;
- 7.1.7 ensure that the relevant Menu Items are available to be ordered by a Customer during Opening Hours;
- 7.1.8 minimise the number of rejected Orders, substitutions (where applicable) of Menu Items in Orders placed by Customers and missing Items from Orders;
- 7.1.9 ensure that if pursuant to Applicable Law any Menu Items are subject to limitations in respect of hours during which they may be sold, the Opening Hours are set so as to comply with such restrictions;

- 7.1.10 accept and reject Orders (as appropriate and in accordance with the Partner Service Levels). For each Order, the aggregate value of the Menu Items must reach Deliveroo's Minimum Order Value;
- 7.1.11 ensure that Orders are prepared promptly and are made available for collection by the Rider or the Customer (as applicable) in accordance with the timescales communicated by the Partner to the Customer via the Platform;
- 7.1.12 process and prepare Orders using reasonable skill, care and diligence and in accordance with best practice in the Partner's industry;
- 7.1.13 take into account any information submitted by Customer along with the Order (including dietary requirements, including allergies or intolerances);
- 7.1.14 ensure all Orders are appropriately packaged in such packaging as may be determined by the Partner (acting reasonably) to avoid tampering, and to minimise spillage, damage, breakage or disassembly. The Partner acknowledges and agrees that a Rider may refuse to accept any order that is not properly packaged in accordance with this paragraph;
- 7.1.15 ensure that the Menu Items:
 - (a) correspond with the descriptions on the Platform (including indications that particular Menu Items are gluten free, nut free, or are suitable for vegetarians and/or vegans, save to the extent edited by Deliveroo pursuant to paragraph 7.1.5(a)) and otherwise meet all statutory and regulatory requirements and comply with all warranties and guarantees implied by Applicable Law in relation to the Menu Items, including those relating to the sale of goods to consumers such as conformity requirements and fitness for purpose requirements;
 - (b) are not harmful to health or the environment;
 - (c) are safe and fit for transportation and fit for the buyer's advertised purpose;
 - (d) are labelled in accordance with Applicable Law and safely, securely and otherwise appropriately packaged at all times (including as reasonably required to withstand the collection or delivery process);
 - (e) that are consumable Menu Items are at an appropriate temperature for consumption by the Customer;
- 7.1.16 comply with applicable consumer post sale rights, including consumer cancellation rights and defective products, in accordance with Applicable Law and Deliveroo's policies, and maintain appropriate and adequate processes and procedures that enable compliance with such rights. Partner acknowledges and agrees that Deliveroo shall have no responsibility to the Customer for any issues that do not directly relate to the Core Services or Pick-up Services;
- 7.1.17 ensure that each Order number on the Order packaging corresponds with the Order number provided by Deliveroo to the Partner before the Order is handed over to the relevant Rider or in respect of Pick-up Orders, the Customer;
- 7.1.18 provide each Customer with an official receipt (and a VAT receipt, if applicable) in respect of an Order, if the Customer so requests;
- 7.1.19 ensure that Customers are at all times treated in a professional manner by Partner staff, and wherever practical are provided with access to a safe waiting area inside the relevant Site when collecting a Pick-up Order;

- 7.1.20 follow the Partner Policy on Customer Compensation and use its best endeavours to resolve any Customer complaints or requests made by a Customer at a Site in a cooperative, timely and professional manner;
- 7.1.21 not sell, and must notify Deliveroo immediately upon, becoming aware of, any Menu Items recalled by a manufacturer or Supervisory Authority. The Partner must further notify Deliveroo immediately upon receipt of any notice or communication from authority board or other body in respect of Supervisory Authority regarding the sale of the Menu Items on the Platform; and
- 7.1.22 co-operate with Deliveroo if Deliveroo is subject to any investigation, enquiry or information request relating to the Menu Items or any other matter relating to the Partner by any Supervisory Authority.

8. DELIVEROO SERVICE LEVELS

- 8.1 Deliveroo shall use reasonable endeavours to ensure:
- 8.1.1 that the Menu Items are delivered within 10 minutes of the Target Delivery Time for at least 70% of all deliveries of Delivery Orders (calculated over a period of one calendar month); and
- 8.1.2 that the Platform shall be available to the Partner and Customers no less than 98% of the time (calculated over a period of one calendar month), except for any scheduled downtime which has been notified to the Partner by Deliveroo in advance.

9. PARTNER SERVICE LEVELS

- 9.1 The Partner shall use reasonable endeavours to:
- 9.1.1 reject less than 1% of all Orders received through the Platform (which shall exclude issues caused by errors in the Platform or otherwise caused by Deliveroo), calculated over a period of one calendar month;
- 9.1.2 ensure that 80% of Orders placed by Customers are completed in full, without any unavailable items (calculated over a period of one calendar month);
- 9.1.3 in respect of Delivery Orders, ensure that the relevant Menu Items are available for collection by Riders at the Site(s) at the time stipulated by Deliveroo on the Software (the “**Pick Up Time**”) for 80% of Delivery Orders (calculated over a period of one calendar month). In any event the Partner shall ensure that the time for which a Rider may have to wait at the Site(s) (“**Rider Held Time**”) to pick up an Order shall be no longer than 5 minutes. The Rider Held Time shall be measured from the Pick Up Time (or if later, the time at which the Rider actually arrives at the relevant Site and notifies the relevant Partner staff of their arrival) to the time at which the Order is provided to the Rider by the Partner for delivery to the Customer (the “**Rider Received Time**”). Where more than one Order is to be delivered by the same Rider in a single journey then the Rider Received Time for all such Orders shall be deemed to be the time at which the last Order is provided to the Rider by the Partner for delivery to the Customer.
- 9.1.4 in respect of Pick-up Orders, ensure that the Menu Items are ready for collection by Customers within 10 minutes of the Target Pick Up Time for at least 80% of all Pick-up Orders at the location stated by the Partner on the Platform (calculated over a period of one calendar month); and
- 9.1.5 ensure that the Software on the Equipment is set as ‘available’ for Orders for 98% of the Opening Hours (calculated over a period of one calendar month).

10. WORKING TOGETHER AND GOVERNANCE

- 10.1 The parties shall use reasonable endeavours to ensure that the Rating remains at no less than 4 during the Term.

11. FEES, PRICING AND PAYMENT

- 11.1 In consideration for the Core Services, Deliveroo shall be entitled to the Core Services Fee. In consideration for the Pick-up Services, Deliveroo shall be entitled to the Pick-up Services Fee. The Core Services Fee and the Pick-up Services Fee (together the “**Services Fees**”) shall each be subject to VAT at the prevailing rate. The Partner shall cooperate with Deliveroo in order to enable it to comply with its VAT accounting obligations.
- 11.2 Notwithstanding the Services Fees, Deliveroo may, in its sole discretion, charge the Customer additional fees.
- 11.3 The first reference period for the calculation of the Services Fees (the “**First Period**”) will end on the Sunday prior to the next Calculation Day following the Commencement Date (the “**First Calculation Day**”). Services Fees will subsequently be calculated weekly on the subsequent Calculation Days by reference to consecutive periods of approximately 7 days ending on the Sunday immediately prior to such Calculation Days (each a “**Period**”).
- 11.4 For the purposes of this paragraph, a day shall be regarded as beginning at 00:00 UTC time and ending at 23:59 UTC time.
- 11.5 Within 2 Business Days of the First Calculation Day, or a subsequent Calculation Day (as the case may be), Deliveroo shall:
- 11.5.1 send or otherwise make available to the Partner a statement summarising the Menu Items ordered from the Partner during the First Period or during the relevant Period (as appropriate) (the “**Menu Items Amount**”);
- 11.5.2 send or otherwise make available to the Partner a statement summarising the corresponding amount due to the Partner, which shall be the Menu Items Amount less the Services Fees (the “**Partner Payment**”); and
- 11.5.3 authorise the transfer of the Partner Payment to the Partner by electronic bank transfer to a bank account in the Territory nominated by the Partner.
- 11.6 Deliveroo shall be responsible for setting the Minimum Order Value. Where the Minimum Order Value is not met, Deliveroo may charge the Customer an additional fee.
- 11.7 Notwithstanding the above, Deliveroo may make available, and the Partner may elect to apply, alternative options for the Period or the timing of the Partner Payment from time to time. In the event of any conflict between the terms of such alternative arrangements and these terms, the terms of such alternative arrangements shall prevail.

12. LIABILITY AND INSURANCE

- 12.1 The Partner shall be solely responsible and liable for all claims against Deliveroo by Customers or other third parties relating to, or arising (directly or indirectly) from or in connection with the sale of Menu Items, except that the Partner shall not be liable, in respect of Delivery Orders only, where Deliveroo is responsible and liable for any claims by Customers under paragraph 12.2.
- 12.2 In respect of Delivery Orders only, Deliveroo shall be solely responsible and liable for any claims by Customers that:
- 12.2.1 the Menu Items have been damaged, broken, disassembled, spilled or crushed after pick up from the Partner (except to the extent this arises due to a failure by the Partner under paragraph 7.1.15(d)); and
- 12.2.2 the Menu Items that are consumable are not at an appropriate temperature for consumption on delivery, as a consequence of having been delivered more than 15 minutes after collection from the Partner (save where, and to the extent that, this is as a result of):
- (a) the Partner’s breach of paragraph 7.1.15(d) or (e); or
- (b) the Partner failing to have any consumable Menu Items ready for collection by a Rider in excess of 10 minutes after the designated collection time).
- 12.3 Subject to clauses 9.1 and 9.2 of the Terms:

- 12.3.1 Deliveroo's total liability to the Partner, whether arising in contract, tort (including negligence and breach of statutory duty) or otherwise arising under or in connection with the Agreement shall not exceed £100,000; and
- 12.3.2 the Partner's total liability to Deliveroo:
- (a) in respect of the indemnity in clause 8.7 of the Terms and 12.4 of the Service Pack, shall be unlimited; and
 - (b) in respect of all other liabilities, whether arising in contract, tort (including negligence and breach of statutory duty) or otherwise arising under or in connection with the Agreement shall not exceed the greater of (a) the total Core Services Fee and Pick-Up Fee (where applicable) paid or payable in the 12 months immediately prior to the first event giving rise to the claim or (b) £100,000.
- 12.4 The Partner shall indemnify and keep indemnified Deliveroo against all Losses suffered or incurred by Deliveroo or its Affiliates in respect of the matters for which the Partner is responsible or liable under paragraph 12.1.
- 12.5 Deliveroo shall indemnify and keep indemnified the Partner against all Losses suffered or incurred by the Partner in respect of the matters for which Deliveroo is responsible or liable under paragraph 12.2, provided that Deliveroo shall not be liable for any Losses sustained or incurred by the Partner that arise directly or indirectly from the Partner's prevention or delay.
- 12.6 If paragraphs 12.1 or 12.2 apply, the Customer may be entitled to compensation from Deliveroo. The Customer's eligibility for, and the level of, such compensation shall be determined by Deliveroo acting reasonably in accordance with the Partner Policy on Customer Compensation. Subject to clause 9.1 and 9.2 of the Terms, this shall be the Customer's sole remedy in relation to paragraphs 12.1 and 12.2.
- 12.7 A party seeking to rely on an indemnity under this Agreement (the "**Indemnified Party**") shall:
- 12.7.1 promptly and fully notify the other party (the "**Indemnifying Party**") of any third-party claim in respect of which it wishes to rely on the indemnity (a "**Claim**");
 - 12.7.2 allow the Indemnifying Party, at its own cost, to conduct all negotiations and proceedings and to settle the Claim, always provided that the Indemnifying Party shall obtain the Indemnified Party's prior approval of any settlement terms, which is not to be unreasonably withheld;
 - 12.7.3 provide the Indemnifying Party with any reasonable assistance regarding the Claim as is required by the Indemnifying Party, subject to reimbursement by the Indemnifying Party of the Indemnified Party's reasonable costs so incurred; and
 - 12.7.4 not, without prior consultation with the Indemnifying Party, make any admission relating to the Claim or attempt to settle it, provided that the Indemnifying Party considers and defends any Claim diligently and in a way that does not bring the reputation of the Indemnified Party into disrepute.
- 12.8 Each party shall maintain public liability insurance to a minimum per claim value of £10 million, with a reputable insurance company, for the duration of the Term.
- 13. TERMINATION**
- 13.1 Unless terminated earlier in accordance with clause 11 of the Terms or in accordance with the terms of this Service Pack, the Agreement shall continue for the Initial Term and shall automatically extend for successive periods of 12 months (each an "**Extension Term**") at the end of the Initial Term or the then current Extension Term (if applicable). Notwithstanding any continuation of this Agreement, if the Partner has agreed to work with Deliveroo on an exclusive basis such that paragraph 4 of this Service Pack applies this Agreement shall terminate on the expiry of 5 years commencing on the Commencement Date.
- 13.2 In addition to the termination rights of the parties set out in clause 11 of the Terms or this Service Pack, without affecting any other right or remedy available to it:
- 13.2.1 Deliveroo may terminate the Agreement by giving 30 days' prior written notice to the Partner:
 - (a) if the Partner breaches paragraph 5.8 (Equipment) of this Service Pack;
 - (b) if the Partner breaches paragraph 7.1.1, 7.1.15, 7.1.16 or 7.1.21 (What You Will Do) of this Service Pack; or
 - (c) in accordance with paragraph 14.2 (Force Majeure Event) of this Service Pack.
 - 13.2.2 Either party may terminate the Agreement on giving the other party not less than 30 days' written notice following the Initial Term; and
 - 13.2.3 Either party may terminate the Agreement by giving 30 days' prior written notice to the other party if any undisputed sum owing to that party under any of the provisions of the Agreement is not paid within 30 days of the due date for payment.
- 13.3 Without affecting any other right or remedy available to it, if at any time:
- 13.3.1 the Partner is in material breach of any of its obligations under the Agreement at any time, whether actual or suspected;
 - 13.3.2 the Partner is or is reasonably suspected by Deliveroo to be engaging in, facilitating or participating in any fraudulent, abusive or illegal activities in respect of the Platform; or
 - 13.3.3 Deliveroo is so required by any Supervisory Authority or otherwise by Applicable Laws,
- Deliveroo may suspend the Services (in whole or in part) and immediately remove any or all Sites from the Platform upon giving written notice to the Partner. Deliveroo shall include a statement of reasons in the notice for any suspension, unless Deliveroo is under a legal or regulatory obligation not to provide the specific facts or circumstances or reference to the applicable grounds(s). Deliveroo shall be entitled to maintain the suspension until the Partner is able to remedy the breach and demonstrate that the relevant circumstances giving rise to the suspension have been remedied and, if suspended for actual or suspected material breach, that it will in future be able to comply with its obligations under this Agreement to Deliveroo's reasonable satisfaction.
- 14. FORCE MAJEURE**
- 14.1 If Deliveroo or the Partner (as the case may be) is unable to carry out any of its obligations under the Agreement due to a Force Majeure Event, the party affected by the Force Majeure Event shall not be liable for such delay or failure in carrying out its obligation(s) and the Agreement shall remain in effect but the obligations in question (and the other party's corresponding obligations, if any, under the Agreement) shall be suspended for so long as the Force Majeure Event continues provided that:
- 14.1.1 the suspension of the performance is of no greater scope than is necessitated by the Force Majeure Event;
 - 14.1.2 the party suffering the Force Majeure Event immediately gives the other party written notice of the occurrence and its expected duration, and continues to furnish regular reports while the Force Majeure Event continues and notifies the other party immediately when it ceases; and
 - 14.1.3 that party uses all reasonable efforts to remedy its inability to perform and to mitigate the effects of the Force Majeure Event.
- 14.2 Without affecting any other right or remedy available to it, if a Force Majeure Event continues for more than 1 month, the other party may terminate the Agreement on serving 30 days' written notice, to that effect on the party suffering the Force Majeure Event.

15. ADDITIONAL OBLIGATIONS

15.1 When onboarding a new Site to the Platform, the Partner must;

15.1.1 give Deliveroo reasonable notice of not less than 20 working days and provide all information reasonably requested by Deliveroo in order to onboard the new Site including reasonably necessary details of the respective Host;

15.1.2 share this Agreement and any future variation of it in full (save in respect of the Core Services Fee, which may be redacted) with the Host of its virtual brands and procure their full compliance with the terms of this Agreement and all applicable terms, conditions, policies and/or guidelines specified by Deliveroo (and any future variations of them) as if they were named as the Partner to the contract; and

15.1.3 where the Partner identifies a potential Host of a Site, notify the Host in advance that;

(A) they shall have no contractual relationship, basis for claim or other rights under the terms of this Agreement against Deliveroo and that Deliveroo shall not be liable to them in any respect including but not limited to any breach of the terms of this Agreement;

(B) Deliveroo shall have no liability or obligation to pay the Partner Payment or any other sums due under this Agreement to any party other than the Partner; and

(C) it shall be the Partner's sole responsibility to allocate the relevant sums due to any Host of a Site and such Host shall have no recourse against Deliveroo in the event of non-payment by or insolvency of the Partner.

15.2 The Partner must provide Deliveroo with a Weekly Report on Monday of each calendar week during the Term;

15.3 For the avoidance of doubt, clause 8 of the Terms shall apply in respect of all of the Partner's Partner Brands on the Platform.

15.4 For the avoidance of doubt, the Partner understands and acknowledges that they and only they (and not the Host of any the Sites) are fully responsible for compliance with the terms of this Agreement and that Deliveroo has no contractual nexus or liability to any third party operator of its Sites

16. DEFINITIONS

16.1 Unless the context otherwise requires, or otherwise specified, capitalised terms used in this Service Pack shall have the meaning given to them in Schedule 1 to the Terms. In addition, the following defined terms shall have the following meanings in this Service Pack:

"Calculation Day" means the applicable Deliveroo standard day on which Deliveroo calculates payments to partners in the Territory

"Commencement Date" has the meaning given to it in the Cover Sheet to the Service Pack.

"Core Services Fee" has the meaning given to it in the Cover Sheet to the Service Pack.

"Customer Support Services" means the support services provided by Deliveroo to the Customer to deal with complaints or enquiries in relation to the delivery or collection Menu Items only and does not include to any support post the completion of such delivery or collection or Menu Items.

"Deliveroo Service Levels" means the service levels applicable to Deliveroo as set out in the Service Pack.

"Delivery Order" means an order: (i) placed by a Customer for one or more Menu Items; and (ii) to be delivered to the Customer by a Rider.

"Delivery Services" means the delivery service offered by Deliveroo to customers comprising the collection of Orders from the Partner at the relevant Site and the delivery of Orders from the Partner to the Customer by riders provided by Deliveroo.

"Editions Service Pack" means the Service Pack for the Editions Services.

"Editions Services" means the Services as more fully described in the Editions Service Pack.

"Extension Term" means a period of 12 months commencing on the day after the end of the Initial Term or the immediately preceding Extension Term (as the context requires) or, if the period from the end of such term to the date falling 5 years after the Commencement Date is less than 12 months, that period.

"Force Majeure Event" means any cause beyond the reasonable control of that party including but not limited to internet and online system failure, power failure, fire, flood, storms, earthquakes, acts of terrorism, acts of war, acts of God, acts of government authority, strikes or other labour disturbances.

"Hosts" means a third party operator of a Partner Brand operating from time to time from a Site

"Initial Term" has the meaning given to it in the Cover Sheet to this Service Pack.

"Joining Fee" means the fee paid by the Partner to Deliveroo set out in the Cover Sheet to this Service Pack.

"Minimum Order Value" means the minimum order value set by Deliveroo as communicated by Deliveroo to the Partner from time to time.

"Opening Hours" means the opening hours for each Site agreed between the Parties in writing from time to time, which shall at all times be at least 95% of: (i) average opening hours (by number of hours and timings) for the Site over the last 90 days; and (ii) the Site's usual opening hours for in-store customers.

"Order" means a Delivery Order or a Pick-up Order.

"Other Service Pack" means any Service Pack between Deliveroo and the Partner, including the Editions Service Pack.

"Partner Brands" means Biff's Plant Shack, Chick Chick Crew, Chick'N'Bun, Chunky Buddha, Farmstand, Halo Burger, Ivan Mazemen by Ivan Ramen, Little Bao Boy, Neat Burger, Nudi, Patty Guy, Plantstand, Salt Shed, SoBe Burger, Tiger and Rabbit, Yatai, Zest by Hanoi Kitchen, Amalfi by VIP, Saucy Buns, A Burger, OutFry or as otherwise agreed between Deliveroo and a Partner in writing from time to time.

"Partner Payment" has the meaning given to it in paragraph 11.5.2 of this Service Pack.

"Partner Policy on Customer Compensation" means the Partner Policy on Customer Compensation available from <https://restaurants.deliveroo.com/en-gb/policies> as Deliveroo may update and supplement from time to time on written notice.

"Partner Service Levels" means the service levels outlined in paragraph 9 of this Service Pack.

"Pick-up Order" means an order: (i) placed by a Customer for one or more Menu Items; and (ii) to be collected by the Customer from a Site.

"Pick-up Services Fee" has the meaning given to it on the Cover Sheet to this Service Pack.

"Rating" means the average feedback rating given by Customers for the Partner on the Platform.

"Rider" means the delivery riders authorised by Deliveroo to carry out the Delivery Services.

"Services Fees" means the Core Services Fee and (if applicable), the Pick-Up Services Fee.

"Site(s)" means each site from which a Host processes Orders, as confirmed by the Partner in writing from time to time in accordance

with this Agreement. For the avoidance of doubt, where a Host processes Orders for multiple Partner Brands from the same location then they shall be regarded as separate Sites for the purpose of this Service Pack

“Supervisory Authority” means any local national or multinational agency, department, official, parliament, public or statutory person or any government or professional body, regulatory or supervisory authority, board or other body.

“Target Delivery Time” means the Delivery Order arrival time displayed to the Customer on the Platform.

“Target Pick Up Time” means the Pick-up Order arrival time displayed to the Customer on the Platform.

“Technology System” means any software, hardware, firmware, telecommunications systems, servers, networks and internet connections or other systems (and any combination of these) relating to a point of sale or order management system operated by or licensed to the Partner but excluding the Platform, the Equipment and the Software.

“Term” means the period from the Commencement Date until the termination or expiry of the Agreement for whatever reason.

“Territory” means as defined in the Cover Sheet to this Service Pack.

“Weekly Reports” means a weekly report generated by the Partner outlining all live Sites and Hosts on the Platform (including details of offboarded Sites for a given week) at the time of submission to Deliveroo.